THE STATE

Versus

SHEILA NDLOVU

HIGH COURT OF ZIMBABWE
KABASA J with Assessors Mr. T.E Ndlovu and Mr. J. Zulu
HWANGE 24 JUNE 2025

Criminal trial

M. Dube, for the state
C. Manyeza, for the accused

KABASA J: The accused is facing a charge of murder as defined in s 47(1) of the Criminal Law (Codification and Reform) Act [Chapter 9:23]. She pleaded not guilty to the charge.

The state alleges that the accused and her husband, one Baron Chigudu who had a special verdict returned in the same matter, hatched a plan to kill the now deceased in order to steal his property and raise money to buy a taxi. They were employed by the now deceased as domestic workers. On 28 December 2022 the now deceased went to the farm to attend to his cattle.

Baron attacked him using an axe, killing him instantly. Baron and accused tied his body to an X-trail, the deceased's vehicle, and drove back to the farm where they threw the deceased's body into a disused mine shaft. The body was later retrieved therefrom.

In defending herself the accused said she was enticed and compelled by her husband Baron to kill the now deceased and steal from him. She acted on the spur of the moment when madness and greediness had taken over her mind and soul.

To prove its case, the state produced the post mortem report, accused's confirmed warned and cautioned statement and the axe which was used to kill the now deceased.

Evidence was led from a member of the Zimbabwe Republic Police who was one of the attending details and a witness whose services were enlisted to pull the deceased's body

from the 20 m deep disused mine shaft. The evidence of four witnesses was admitted in terms of s314 of the Criminal Procedure and Evidence Act [Chapter 9:07].

Most of the facts were common cause:-

1. Following their arrest, accused and Baron led the police to the deceased's farm and to the disused mine shaft where the deceased's body was recovered.

2. At the scene was a dry pool of blood and drag marks leading to the mine shaft. The house had nothing by way of property.

3. The police sought assistance from D.G mine and the deceased's body was hauled out of the shaft.

4. Dry cow hides, mosquito net, an axe and deceased's clothes had been thrown into the shaft.

5. The deceased's property was recovered from a transporter who had been hired by the accused and Baron to take property from deceased's farm house at a fee of US$70. The property worth US$7 811 comprised of household goods, spanners, tyres, hammers, a trailer and hosepipes.

The postmortem report gave the cause of death as:-

1. Dislaceration encephalic
2. Cranial trauma
3. Assault

The pathologist noted the following marks of violence: fracture of right frontal-parietal region and temporal region, ecchymosis in anterior thorax, left side, linear fracture, comminute and depressed fracture in front parieto-temporal region, right side and hemorrhagic infiltrate and laceration in frontal and parieto-temporal region.

The accused gave a very detailed warned and cautioned statement. She narrated when the plot to kill the deceased was hatched and why the deceased had to be killed. She agreed with the idea and promised to help Baron, her husband. When the deceased came to the farm on 28 December 2022 she is the one, who when asked to bring some water to the cattle pen where deceased and her husband were, she also brought an axe. When she realised that her

husband had not used it at the kraal, she took it into the motor vehicle when the deceased suggested that they go and get firewood. After Baron successfully axed the deceased, she told him to finish him off after he had delivered the first blow, for fear that the deceased would make noise and attract the attention of passers-by. She then accompanied her husband to fetch a wheelbarrow and a rope with which they tied the deceased's legs before tying his body to the motor vehicle and drove off to the shaft where the body was thrown into.

She accompanied her husband to the house where they took a fish net, tyre, tube, skin hides and threw them into the shaft together with the axe and deceased's clothes. She provided light as it was now dark whilst Baron threw soil into the shaft. She also threw in some stones.

From the foregoing it is not in dispute that the accused participated in the killing of the deceased. The specific role she played does not change the fact that she participated in the murder.

Section 196 A of the Criminal Law Code provides that:-

> "(1) If two or more persons accused of committing a crime in association with each other and the state adduces evidence to show that each of them had the requisite *mens rea* to commit the crime whether by virtue of having the intention to commit it or the knowledge that it would be committed, or the realisation of a real risk or possibility that a crime of the kind in question would be committed, then they may be convicted as co-perpetrators, in which event the conduct of the actual perpetrator (even if none of them is identified as the actual perpetrator) shall be deemed also to be the conduct of every co-perpetrator, whether or not the conduct of the co-perpetrator contributed directly in any way to the commission of the crime by the actual perpetrator."

In this case the participation of the accused was from the onset when the plan was hatched to its successful execution.

The accused appears to be raising the defence of compulsion. Section 243 of the Criminal Law Code provides that:-

> "(1) Subject to this part, the fact that a person accused of a crime was subjected to compulsion when the person did or omitted to do anything that is an essential element of the crime shall be a complete defence to the charge if –
>
> (a) the compulsion consisted of a threat –
> (i) unlawfully to kill him or her or cause him or her serious bodily injury or to kill or cause serious bodily injury to some other person: or
> (ii) unlawfully to cause him or her financial or proprietary loss: and

(b) he or she believed on reasonable grounds that implementation of the threat referred to in paragraph (a)
(c) had begun or was imminent; and
(d) the threat referred to in paragraph (a) was not brought about through his or her own fault; and
(e) he or she believed on reasonable grounds that he or she could not escape from or resist the threat referred to in paragraph (a) and that his or her conduct was necessary to avert the implementation of the threat; and
(f) by his or her conduct he or she did no more harm that was reasonably necessary to avert the implementation of the threat referred to in paragraph (a) and no more than was unlawfully threatened."

In this case the accused merely raised compulsion to try and escape the consequences of her actions. We say so because:-

1) The plan was hatched on 15 December 2022. She and her husband had just been employed two weeks prior. The deceased only came on 28 December. There is nothing to show that the accused was unable to seek help and report the plot if she indeed was not interested in seeing it through.

2. She is the one who brought the axe when she had not been asked to. Asked why she brought the axe she said because they wanted to cut a tree which was in the cattle pen. If that was so why then did she leave the axe by the car and not hand it over together with the water?

3. Why did she say when she realised that her husband had failed to use it she then decided to take it with her into the vehicle as they went to get the firewood the deceased had decided to fetch. This was her own initiative based on the earlier plot whose accomplishment was nigh when the deceased visited the farm on this day.

4. She is the one who encouraged the husband to finish the deceased off lest he attracts attention from passer-by. Is such conduct from one who was not acting of their own volition?

5. Under cross-examination she readily accepted that she had planned to kill the deceased but when it was discussed she did not take it seriously. Whoever jokes about killing someone?

She also readily accepted that the plan was to kill him so as to take his property and raise money to buy a taxi. After the deceased was killed she and her husband hired a vehicle and emptied the deceased's home of all the property.

She was not acting under any kind of threat. She willingly participated. Her defence outline says it all. Greed got the better of her and she found the plan attractive.

Greed and a self-centered and selfish motive have nothing in common with acting under compulsion.

She prevaricated under cross-examination. At one time accepting that she helped throw the body into the pit and yet said that was not done to conceal the body. Why throw it into the pit then if not to conceal it?

The more she responded to questions the more her made-up story unraveled.

We were left in no doubt that she participated in the plot from planning to execution stage voluntarily. She was not threatened or coerced.

Using an axe to bludgeon a human being on the head shows an intention to kill.

She and her husband set out to kill and accomplished that mission. This was a murder committed in order to facilitate the taking of the deceased's property. Not only was it pre-meditated but it was carefully executed, taking the deceased completely by surprise.

The state proved its case beyond a reasonable doubt and the accused is found guilty as charged.

Sentence

You are a 31 year old first offender. You only went up to Grade 7. You have spent 2 ½ years in pre-trial incarceration. You are a woman and women are usually treated with some measure of leniency.

You will live with the stigma of being labelled a murderer. Your husband was committed to Mlondolozi Special Institution, leaving your 2 young children without parents to fend for them.

In aggravation is the fact that this was a murder committed in aggravating circumstances.

There was pre-meditation and you committed the murder in order to steal from the deceased.

You sought to conceal the murder by dumping his body in a disused mine showing utter disrespect for a dead body, one you had disrespected by callously ending his life.

You completely emptied his home, fortunately all the property was recovered.

A woman is supposed to have a nurturing character, gentle and kind hearted. You did not show any of these traits.

This offence does not justify leniency. Your being a woman does not justify a departure from the penalty such an offence deserves. You provided the weapon which was used to end the deceased's life. You showed no remorse throughout the trial and sought to minimize your role be claiming that you were compelled by your husband.

You are accordingly sentenced to:

25 years imprisonment.

National Prosecuting Authority, state's legal practitioners
Mhaka Attorneys, accused's legal practitioners